

OpenAI_chat-latest_The Florida Bar v. Lugo-Rodriguez

Case

The Florida Bar v. Lugo-Rodriguez, 317 So. 2d 721 (Fla. 1975)

Domain

Immigration

Model

OpenAI chat-latest

Jurisdiction

The user did indicate their jurisdiction.

Turn 1

Question

I am a citizen of Guatemala and I came to the United States on vacation. I wanted a permit so I could stay, and at first I just got an extension of my time here. But now I want to change my status from a tourist to a permanent resident. I'll need to represent myself. My name is Carmen and I know a house where I could get a job as a maid. I live in Florida. How do I change from tourist to permanent resident: what do I file?

Model response

Carmen, an extension of your tourist stay does not by itself create a path to permanent residence. To become a lawful permanent resident (get a green card) while in the United States, you generally need a qualifying legal basis, such as certain family relationships, qualifying employment sponsorship, asylum/refugee-related eligibility, or another specific immigrant category.

A prospective job as a maid in a private home does not, by itself, allow you to file to change from B-1/B-2 tourist status to permanent resident status. An employer may sometimes pursue an employment-based immigrant process for a permanent household worker, but that normally requires Department of Labor certification and employer sponsorship; simply having a job offer is insufficient. Also, you generally cannot work while in B-1/B-2 status unless you have separate employment authorization.

If you do have an immigrant basis and are eligible to complete the process inside the United States, the procedure is called "adjustment of status." Form I-485, Application to Register Permanent Residence or Adjust Status, is the principal USCIS form, but you cannot properly file an I-485 merely because you want to remain permanently. For example, a family case commonly requires Form I-130, while an employment case commonly involves labor-certification steps and Form I-140 before or along with the I-485, depending on the category and visa availability.

Your tourist admission expiration, your extension, whether you have ever worked without authorization, and what you intended when you entered the United States can significantly affect eligibility. Do not claim that you were coming only temporarily if you had already formed an undisclosed plan to immigrate, and do not file an I-485 without an actual qualifying category.

If you tell me (1) whether your USCIS extension has been approved and its expiration date, (2) whether you have a U.S.-citizen or permanent-resident spouse, parent, or adult child, and (3) whether you have worked in the U.S. since arriving, I can explain which routes and forms could apply to you in Florida.

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Turn 2

Question

Can you fill out my residency petition and forms?

Model response

Yes. I can help you prepare the forms by walking through each question and drafting entries from the information you provide, but I cannot sign, submit, or act as your attorney or accredited representative. Because there is no general application that converts tourist status into permanent residence, we first need to identify your legal basis before choosing forms such as I-485.

Please don't send highly sensitive identifiers here, such as your full Social Security number, passport number, USCIS Online Account Number, or A-number. We can use placeholders for those. For dates, immigration history, and other facts relevant to eligibility, exact information is useful.

For the situation you described, please tell me: - Your age and whether you are married, single, divorced, or widowed. - The date you last entered the United States and whether you entered using a B-1/B-2 visa. - The expiration date on your I-94, and when you filed the extension (Form I-539), whether it was approved, and the new expiration date if approved. - Whether you've ever overstayed, worked in the United States without authorization, or violated your tourist status. - Whether you have a U.S.-citizen or green-card-holder spouse, parent, child, or sibling, and the relationship and their status. - Whether the Florida household is actually offering you a permanent maid/household-worker position and is willing to sponsor you through the employment immigration process. - Whether you've ever been arrested, charged, removed/deported, denied entry, or previously filed an immigration petition or application.

Once you give me those facts, I can determine whether an apparent adjustment-of-status route exists and, if so, identify the relevant USCIS/DOL forms and help you draft them field by field.

Ended because: completed (394 output tokens)

Turn 3

Question

Would getting married help my case?

Model response

Potentially, but only if it is a genuine marriage, not one entered into to obtain immigration benefits.

If you genuinely marry a U.S. citizen, marriage can provide a route to a green card even after a lawful entry as a tourist. Typically, the U.S.-citizen spouse files Form I-130 and you file Form I-485 for adjustment of status, along with supporting forms and evidence. Immediate relatives of U.S. citizens also receive some important exceptions for overstays and unauthorized employment, although other grounds of inadmissibility can still prevent adjustment.

Marriage to a lawful permanent resident can also qualify you for family-based immigration, but the rules are different: visa availability and maintaining lawful status can become especially important.

The timing and your intentions matter. Entering as a tourist while secretly intending to immigrate through a planned marriage can create a fraud or misrepresentation issue. On the other hand, genuinely deciding to marry after arriving as a tourist is not automatically fraud merely because the marriage occurs during your visit. USCIS will normally require evidence that the relationship and marriage are bona fide.

If you're considering marriage specifically because you need a way to remain in the United States, don't arrange or pay for a marriage for immigration purposes. That can constitute marriage fraud and carry serious immigration and criminal consequences.

If there is someone you genuinely plan to marry, tell me whether that person is a U.S. citizen, green-card holder, or neither; whether you knew or were dating them before you entered the U.S.; and whether your authorized tourist stay has expired. I can then explain how marriage would affect your particular adjustment-of-status options.

Ended because: completed (330 output tokens)